

23STCV18802 23STCV18802

County: los-angeles

Division: Civil Law and Motion

Department: 414

Hearing date: 2026-06-23

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C414%2C06%2F23%2F2026

Source SHA-256: b35c62ba5890091b708d048edcf1bbfa9f349a72c755d7cd99e393be2499972c

Case Number: 23STCV18802 Hearing Date: June 23, 2026 Dept: 414

23STCV18802

Rebecca Rowe v. Workman Design and Construction

Tuesday,

June 23, 2026

[TENTATIVE] ORDER DENYING

MOTION TO BE DEEMED PREVAILING PARTY AND FOR AN AWARD OF ATTORNEYS' FEES BY CROSS-DEFENDANT

REBECCA S. ROWE (1475)

[TENTATIVE] ORDER DENYING

DEFENDANT AND CROSS COMPLAINANT WORKMAN DESIGN AND CONSTRUCTION POOLS AND

LANDSCAPES INC.'S MOTION FOR ATTORNEY'S FEES (2789)

I.

BACKGROUND

The

complaint alleges that Plaintiff contracted with Defendants, Workman Design and

Construction ("WDC") and Anthony Workman, individually ("Anthony"),
("collectively Defendants") who agreed to build an Accessory Dwelling Unit.

Plaintiff alleges that Defendants breached the contract by failing to pay the
subcontractors.

WDC filed a first amended Cross-Complaint
("FAXC") against Plaintiff to foreclose on mechanic's liens and to assert
contract-related claims.

Workman Design and Anthony obtained
affirmative relief on the Cross-Complaint. Plaintiff did not obtain any relief
on the Complaint.

Plaintiff contends she is the prevailing
party against Anthony on the Cross-Complaint and requests \$226,140.00.

Defendant argues the court made it abundantly clear that judgment was in favor
of both Workman and Anthony on the Cross-Complaint.

II.

DISCUSSION

Plaintiff relies on Civil Code section
8800 which allows a prevailing party to recover attorney's fees if the owner
does not pay the contractor within 30 days of notice and progress payments that
become due. (Civ. Code, § 8800.) Plaintiff also requests fees pursuant to

Code of Civil Procedure 1033.5, which permits recovery of attorney's fees as a cost if permitted by statute.

Plaintiff argues the court's judgment on the Cross-Complaint was in favor of Rowe as Cross Defendant and against Anthony.

As WDC and Anthony argue, the court stated that the Statement of Decision controls, and it expressly defines "WDC" to include both the entity and Anthony. (M.O. 5/5/26.) Accordingly, Plaintiff is not the prevailing party against Anthony on the Cross-Complaint.

Plaintiff's motion is

DENIED.

[TENTATIVE] ORDER DENYING

DEFENDANT AND CROSS COMPLAINANT WORKMAN DESIGN AND CONSTRUCTION POOLS AND LANDSCAPES INC.'S MOTION FOR ATTORNEY'S FEES (2789)

I.

ARGUMENTS

The WDC

entity and Navigators Insurance Company request attorney's fees of \$280,533.97 pursuant to Rules of Court 3.1702 which permits statutory and contract attorney's fees and pursuant to Civil Code § 8800 because there was no good faith dispute

between Rowe and WDC entitling Rowe to withhold a periodic payment of \$9,460.00.

Plaintiff

argues the court found that Plaintiff was acting in good faith when she withheld

payments, and therefore, section 8800 does not apply. Plaintiff argues that

Defendant cannot recover fees for the lien claims and common counts asserted in

the Cross-Complaint. Plaintiff contends the fee request is grossly

disproportionate to the judgment.

II.

DISCUSSION

An

owner may withhold from the progress payment an amount not in excess of 150

percent of the disputed amount if there is a good faith dispute between the

owner and direct contractor as to a progress payment due. (Civil Code § 8800(b)).

Defendants argue they are prevailing parties under Civil Procedure 1032 since

Defendants obtained a net monetary recovery. Civil Code § 8800 (the “prompt

payment” statute) does not define a prevailing party, and therefore, the court

has discretion to determine which party prevailed. (Vought

Construction Inc. v. Stock (2022) 84 Cal.App.5th 622, 634 [“The

determination of whether there is a prevailing party is to be made on a

practical level after considering what each party accomplished via the

litigation."].)

In Vought,

cited by Cross-complainants, the plaintiff sued for penalties under section

8800, which Cross-Complainants did not assert. Here, Cross-complainants allege

Rowe withheld payment because Anthony mishandled the money. (FAXC ¶ 11.) The

Statement of Decision reflects that the court ruled on the breach of contract

claim and breach of the covenant of good faith and fair dealing.

Cross-complainants alleged Rowe failed to make a requested periodic payment of

\$23,571 in December of 2021 and withheld the final invoice. (S.O.D. p. 17.) The

court awarded Cross-complainants \$9,460 because Rowe did not pay the full

amount owed. Thus, Cross-complainants were permitted to foreclose on the

mechanics lien for that amount. (S.O.D. p. 18.)

However,

since Cross-complainants never asserted a claim for penalties in their

Cross-Complaint, they are not entitled to fees under that statute.

Section

8800 states:

"If there is a good faith dispute between the

owner and direct contractor as to a progress payment due, the owner may

withhold from the progress payment an amount not in excess of 150 percent of

the disputed amount." (Civ.

Code, § 8800.)

In

addition to the fact that the Cross-Complaint does not allege a claim for penalties

under section 8800, this court found that there was no agreement for progress

payments.

"There was no written agreement, and the estimate does not

call for periodic

payments. There was no credible evidence that the parties

orally agreed to periodic payments. And, while the Court can infer contract

terms from the parties' conduct, the Court will not and cannot infer that the

parties had a meeting of the minds with respect to periodic payments." (S.O.D.

p. 17.)

The S.O.D. discusses Plaintiff's

subjective good faith belief that the December 2021 invoice was fraudulent. This

analysis was in the context of Cross-complainants claim for breach of the

implied duty of good faith and fair dealing which the court denied since there

was no agreement for periodic payments. Additionally, there were no findings

made as to whether the amount of money withheld was 150 percent of the disputed

amount. Nor was there a dispute as to what was owed, whether or not in good

faith, because Plaintiff did not pay an outstanding "request for check". The parties distrusted each other. (S.O.D. p.

19.)

III.

CONCLUSION

Based on the foregoing,

Cross-complainants' motion for attorney's fees is DENIED.